Dikshant vs The State Govt Of Nct Of Delhi on 5 December, 2023

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3637/2023
DIKSHANT
Throug

versus

THE STATE GOVT OF NCT OF DELHI ..
Through: Mr. Ajay Vikram Singh
the State with SI Dh
Geeta Colony
Complainant in perso
CORAM:
HON'BLE MR. JUSTICE SAURABH BANERJEE
ORDER

% 05.12.2023

1. The applicant, vide the present application under Section 438 of the Code of Criminal Procedure, 1973 [CrPC] seeks anticipatory bail in FIR No.185/2023 dated 21.04.2023 under Sections 420/468/471/120B/34 of the Indian Penal Code, 1860 [IPC] at PS.: Geeta Colony, Delhi.

2. As per the FIR, the complainant, Dharna Pruthi and her friend, Rashmeet Kaur, desirous of pursuing their studies in Canada, were referred to one Vonisha Arora, by one Gaurav (a friend of the complainant's father), stating that the said Vonisha Arora does immigration work in Ludhiana. The complainant contacted her in December, 2021 and was told to send her educational documents and that she will be charged Rs.18 lakhs for the same. The complainant and her friend transferred the money in Vonisha Arora's Account. However, This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 07/12/2023 at 23:52:09 Vonisha Arora kept delaying the process and kept on asking for additional money for biometric and other procedures. On the complainant enquiring of the progress, she was asked to now apply for a Tourist Visa and then to apply for a Work Permit as the same would be easier to get. The complainant and her friend were then sent Visa of Malaysia on the pretext that the direct Visa for Canada was unavailable and that they shall be sent to Canada from Malaysia. The complainant, alongwith her friend, paid an additional amount of Rs.21 lakhs for applying for the Work Permit and finally arrived in Malaysia on 02.08.2022. On reaching Malaysia, they met the applicant herein, who was the brother of Vonisha Arora. It was then alleged that Vonisha Arora came back to India on one or the other excuses and kept delaying the process of the complainant. Thereafter, though after additional payments of over Rs.6 lakhs, a Visa for Canada was received by the father of the complainant but because it was bereft of other documents, the complainant could not go to Canada and it was later found to be fake. Thereafter, Vonisha Arora, along with her husband, Rajan kept on

giving different excuses to the complainant for the delay in the process, while the complainant and her friend were still stuck in Malaysia.

3. Thereafter, when no action was taken, the father of the complainant met with Vanisha Arora, at her house where her husband, the father of the applicant herein and Gaurav were also present, and who assured that the complainant will be sent to Canada on 04.01.2023, and in case the complainant and her friend are unable to go to Canada, all the money given to Vonisha Arora till date, would be returned to them. Thereafter, the complainant was informed that she and her friend would be sent to Canada via Bangkok, after payment of another additional amount of This is a digitally signed order.

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4. Vide order dated 14.10.2023 passed by the learned Trial Court, the applicant herein was granted interim protection against arrest and was directed to join investigation. In terms of the said order, the applicant joined the investigation on 21.10.2023.

5. Learned counsel for the applicant submits that he has been falsely implicated in the present case and that he had no role to play in the commission of the alleged offence as there is no nexus whatsoever between him and the alleged offence. He submits that the only allegation against him is that he was present at the hotel when the complainant and her friend arrived, which is not enough to implicate the applicant in the present case and is being only roped in the present matter as an afterthought since he is the brother of Vonisha Arora.

6. He further submits that the applicant is currently pursuing his education from Guru Nanak Dev University, and has clean antecedents. He further submits that since the case is based upon documentary evidence, the custodial interrogation of the applicant is not required. He lastly submits that in any event, he has already joined investigation and is willing to join and participate therein as and when called for. He thus prays that the applicant be granted anticipatory bail in the present case.

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7. Notice was issued and Status Report was called for. Learned APP for the State has handed over the copy of Status Report which is taken on record.

8. Learned APP for the State, relying on the Status Report, and with support from the complainant present in person, opposes grant of bail to the applicant on the ground that considering the nature and gravity of the offence where the victims have been duped of almost Rs. 42 lakhs each and that fake Visa and other documents were created by the accused persons, mainly, Vonisha Arora, who is the sister of the present applicant, no ground for bail is made out. He further submits that since the applicant was already present at the hotel in Malaysia, he was aware of the fraud being committed. He further submits that the applicant has disclosed that he had also paid Rs.18 lakhs to Vonisha Arora and that he was also not sent to Canada, however, no complaint in this regard was filed by him. He lastly submits that considering that the investigation in the present case is at a very nascent stage and that process under Section 82 CrPC has been initiated against the other accused persons namely Vonisha Arora, Rajan and Varinder Arora, bail be not granted to the applicant as the custodial interrogation of the applicant is necessary to unearth the entire conspiracy.

9. This Court has heard learned counsel for the applicant and the learned APP for the State and gone through the relevant documents on record.

10. As per records, though the applicant is named in the FIR but no specific, rather hardly any, role is attributable to him therein. In any event, there is no nexus showing that the applicant was either involved or a part of any of the transactions with the complainant. The applicant herein is the This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 07/12/2023 at 23:52:10 brother of one of the main accused-Vonisha Arora. Being related to one of the co-accused, be it the main accused, is simplicitor not sufficient for implicating the applicant, more so, when there is no direct link/ nexus/ connection inter-se the two nor can anything of that kind be established at this stage. In the present proceedings, the only role assigned to the applicant is that he was present at the hotel in Malaysia when the complainant and her friend reached there and that he was aware of the fraud being committed. The same requires trial to be led prior to the offence being proven. At this stage, it is not enough for this Court to conclude that the applicant was acting in connivance with the other co- accused or he was a part of the offence and are thus is not sufficient to establish any kind of involvement of the applicant in the offence. For the said reasons, there is no impediment for this Court to proceed in granting bail to the applicant.

11. Even otherwise, this Court is of the opinion that no custodial interrogation of the applicant is required since the applicant has since also joined investigation way back on 21.10.2023 and has been participating therein as and when called for after he was granted interim protection by the learned Trial Court.

12. Deducing from the aforesaid, coupled with the fact that the applicant is a student with clean antecedents, this Court is of the opinion that the applicant has been able to make out a case by satisfying the broad parameters for grant of anticipatory bail, primarily whence this Court is not required to critically analyse the evidence on record at the stage.

13. Accordingly, the applicant is granted anticipatory bail in FIR No.185/2023 dated 21.04.2023 under Sections 420/468/471/120B/34 IPC This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 07/12/2023 at 23:52:10 at PS.: Geeta Colony, Delhi. In the event of his arrest, the applicant be released, after furnishing a personal bond in the sum of Rs.1,00,000/- (Rupees One Lakh Only) alongwith one surety of the like amount by a family member/friend having no criminal case pending against them, subject to the satisfaction of the learned Trial Court, and further subject to the following conditions:

> i. Applicant shall not leave Kapurthala, Punjab, without prior permission of this Court and shall ordinarily reside at the address as per the Trial Court records. If he so wishes to change his residential address, he shall immediately intimate about the same to the I.O. by way of an affidavit.
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> ii. Applicant shall surrender his Passport to the I.O., within three days. If he does not possess the same, he shall file an affidavit before the I.O. to that effect within the stipulated time. iii. Applicant shall appear before the Court as and when the matter is taken up for hearing.
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> iv. Applicant shall join investigation as and when called by the I.O. concerned. He shall not obstruct or hamper with the police investigation and shall not play mischief with the evidence collected or yet to be collected by the Police.
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> v. Applicant shall provide all his mobile numbers to the I.O. concerned which shall be kept in working condition at all times and shall not switch off or change the mobile number without prior intimation to the I.O. concerned. The mobile location be kept on at all times.
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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 07/12/2023 at 23:52:10 vi. Applicant shall report to the local Police Station once every month in the first week of the month unless leave of every such absence is obtained from the learned Trial Court. vii. Applicant shall not indulge in any criminal activity and shall not communicate with or come in contact with any of the prosecution witnesses, the victims or any member of the victim's family or tamper with the evidence of the case or try to dissuade them from disclosing such facts to the Court or to any police officials.

14. Accordingly, the present application is allowed and disposed of in the aforesaid terms.

15. Copy of this order be sent to the concerned S.H.O. for necessary information and compliance thereof.

16. Needless to say, the observation made, if any, on the merits of the matter are purely for the purposes of adjudicating the present application and shall not be construed as expressions on the merits of the matter.

SAURABH BANERJEE, J DECEMBER 5, 2023/akr This is a digitally signed order.

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